

1 That's all I need to put.

2 I am not going to indicate what the
3 implications are or anything else about their
4 decision.

5 It's frankly not relevant or pertinent to
6 what they have to decide in this matter.

7 The Court's going to complete that, and if
8 you have an objection, you can make that now, sir.

9 MR. ROSARIO: Of course we have an objection.
10 Not on the other clarification as to the instructions
11 in the verdict form as they were written by the
12 Defense that I agreed to.

13 I would like to bring to the Court's
14 attention on the other matter, and make sure that is
15 preserved on the record, that we asked for the
16 mistrial due to extemporaneous information being
17 accessed by the Jury.

18 THE COURT: Sir, it is denied.

19 MR. ROSARIO: I understand.

20 THE COURT: The language states, in pertinent
21 part: "Please follow the instructions after you
22 answer yes or no to question two.

23 You will have a copy of that. The clerk will
24 hand you a copy of each question -- the response to
25 question three.

26 (Short recess).

27 THE BAILIFF: Department 504 is now in
28 session.